



CHAPTER xxxii.

An Act to confirm a Provisional Order under the Private A.D. 1918.
Legislation Procedure (Scotland) Act 1899 relating to
the Glasgow and South Western Railway.

[30th July 1918.]

WHEREAS His Majesty's Secretary for Scotland has after
inquiry held before Commissioners made the Provisional
Order set forth in the schedule hereunto annexed under the
provisions of the Private Legislation Procedure (Scotland) Act 62 & 63 Vict.
1899 and it is requisite that the said Order should be confirmed c. 47.
by Parliament:

Be it therefore enacted by the King's most Excellent
Majesty by and with the advice and consent of the Lords
Spiritual and Temporal and Commons in this present Parliament
assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto Confirmation
annexed shall be and the same is hereby confirmed. of Order in
schedule.

2. This Act may be cited as the Glasgow and South Western Short title.
Railway Order Confirmation Act 1918.

A.D. 1918.

SCHEDULE.

GLASGOW AND SOUTH WESTERN RAILWAY.

Provisional Order for conferring further powers on the Glasgow and South Western Railway Company for the construction of a widening and works and the acquisition of lands the raising of additional capital and for other purposes.

WHEREAS it is expedient that the Glasgow and South Western Railway Company (in this Order called "the Company") should be empowered to construct and maintain the widening of railway and other works hereinafter mentioned and for those and other purposes of their undertaking to acquire the lands hereinafter respectively described or referred to :

And whereas plans and sections showing the lines and levels of the said widening of railway and works and plans showing the lands required or which may be taken for the purposes or under the powers of this Order and also books of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands have been deposited with the principal sheriff clerks of the counties of Ayr and Dumfries respectively which plans sections and books of reference are hereinafter respectively referred to as "the deposited plans sections and books of reference" :

And whereas it is expedient that the time now limited by the Glasgow and South Western Railway Order 1911 (hereinafter referred to as "the Order of 1911") for the construction of the railways and works by that Order authorised should be extended :

And whereas it is expedient that the time now limited by the Caledonian Railway Order 1915 for the compulsory purchase of the several lands required for the purposes of the railways and works and for the completion of Railway No. 5 authorised by the Glasgow and Renfrew District Railway Act 1897 should be further extended :

And whereas it is expedient that further powers should be conferred upon the Company as regards their own undertaking

and upon the Company and the Caledonian Railway Company (in this Order called "the Caledonian Company") as joint owners of the Glasgow and Paisley Joint Railway and the Glasgow and Kilmarnock Joint Railway as regards the said joint railways respectively and upon the Portpatrick and Wigtownshire Joint Committee (in this Order called "the joint committee") and the owning companies constituting the said committee as regards the Portpatrick and Wigtownshire Railways with respect to the sale or other disposal of lands acquired but which are not or eventually may not be required for the purposes of the said undertaking and railways respectively: A.D. 1918.

And whereas the Company have already expended and will still require to expend money for purposes connected with their undertaking for which no capital has been authorised or for which the capital already authorised has proved or will prove insufficient and it is expedient that the Company should be authorised to raise additional capital to meet such expenditure and for the purposes of this Order and for other purposes of their undertaking:

And whereas since the passing of the Lands Clauses Consolidation Acts Amendment Act 1860 the Company have from time to time purchased lands in consideration of the payment of perpetual feu duties and ground annuals as mentioned in section 5 of that Act the capitalised value of which computed at twenty years' purchase thereof amounts in the aggregate to one hundred and thirty-eight thousand one hundred and eighteen pounds or thereabouts and it is expedient that in respect thereof there should be created and that the Company should be empowered to issue debenture stock to make good the reduction of borrowing powers in that section referred to:

And whereas it is expedient that the other provisions contained in this Order should be enacted:

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows:—

1. This Order may be cited for all purposes as the Glasgow and South Western Railway Order 1918 and shall come into

Short title.

A.D. 1918. operation at the date of the passing of the Act confirming the same which date is in this Order referred to as "the commencement of this Order."

Incorporation of general Acts.

2. The Lands Clauses Acts the Railways Clauses Consolidation (Scotland) Act 1845 Part I. (relating to the construction of a railway) and Part II. (relating to extension of time) of the Railways Clauses Act 1863 the clauses and provisions of the Companies Clauses Consolidation (Scotland) Act 1845 with respect to the following matters (that is to say):—

The distribution of the capital of the Company into shares;

The transfer or transmission of shares;

The payment of subscriptions and the means of enforcing the payment of calls;

The forfeiture of shares for non-payment of calls;

The remedies of creditors of the Company against the shareholders;

The borrowing of money by the Company on mortgage or bond;

The conversion of the borrowed money into capital;

The consolidation of the shares into stock;

The general meetings of the Company and the exercise of the right of voting by the shareholders;

The making of dividends;

The giving of notices; and

The provision to be made for affording access to the special Act by all parties interested;

and Part I. (relating to Cancellation and Surrender of Shares Part II. (relating to Additional Capital) and Part III. (relating to Debenture Stock) of the Companies Clauses Act 1863 as amended by subsequent Acts are (except where expressly varied by this Order) incorporated with and form part of this Order and for the purposes of the said Acts this Order shall be deemed to be a special Act.

Interpretation.

3. In this Order the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such con-

struction and the expression “the railway” or “the railways” A.D. 1918.
means the widening of railway authorised by this Order.

4. Subject to the provisions of this Order the Company may make and maintain in the lines and according to the levels shown on the deposited plans and sections the widening hereinafter described with all proper sidings approaches works and conveniences connected therewith and may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited books of reference as may be required for that purpose The widening hereinbefore referred to and authorised by this Order is—

A widening (1 mile 0 furlongs and 1·21 chains in length) of the Company's Ardrossan Railway situated in the parish of Stevenston and partly in the burgh of Saltcoats in the county of Ayr commencing by a junction with the said Ardrossan Railway at a point thereon one hundred and twenty yards or thereabouts measured in an easterly direction along the same from M'Lachlan's Lane Level Crossing in the said parish and burgh and terminating by a junction with the said Ardrossan Railway at a point thereon one hundred and five yards or thereabouts measured in an easterly direction along the same from the point where the Stevenston Burn passes under the said Ardrossan Railway.

5. The Company in constructing the widening authorised by this Order may deviate from the lines thereof shown on the deposited plans to the extent of the limits of deviation marked on such plans respectively and may deviate from the levels thereof shown on the deposited sections to the extent mentioned in the Railways Clauses Consolidation (Scotland) Act 1845.

6. The widening of railway authorised by this Order shall for the purposes of maximum tolls rates and charges be part of the railways of the Company as if the same had been part of the Glasgow and South Western Railway at the date of the passing of the Railway Rates and Charges No. 22 (Glasgow and South Western Railway &c.) Order Confirmation Act 1892 and shall for all other purposes be part of the undertaking of the Company as it existed at the date of the passing of the Glasgow and South Western Railway Consolidation Act 1855.

A.D. 1918. 7. The Company may stop up and discontinue the level
Power to crossing known as Heatherhouse over the main line of railway
stop up level of the Company in the parish of Dundonald and royal burgh of
crossing. Irvine and subject as hereinafter provided all rights of way
or servitudes in over or across the said level crossing shall be
extinguished :

Provided that nothing contained in this Order shall authorise the Company to stop up discontinue interrupt or in any way interfere with the said level crossing in so far as it constitutes an access for the accommodation of the owners and occupiers for the time being of the land adjoining and lying to the south-west of the Company's line of railway in the parish of Dundonald (which land has been acquired by His Majesty's Principal Secretary of State for the War Department and upon part of which the Minister of Munitions has recently erected a factory) without the written consent of His Majesty's said Principal Secretary of State for the War Department and the owners and occupiers for the time being of the said land :

Provided also that the Company shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall save so far as otherwise agreed be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Works below
high-water
mark to be
subject to
approval of
Board of
Trade.

8. Subject to the provisions of this Order any of the works authorised by this Order to be constructed on over or under tidal lands below high-water mark of ordinary spring tides shall be constructed only in accordance with such plans and sections and subject to such restrictions and regulations as previous to such works being commenced have been approved by the Board of Trade in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade.

Any alteration or extension of any such works shall be subject to the like approval.

If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the cost of the Company and the amount of such

cost shall be a debt due from the Company to the Crown and shall be recoverable as a Crown debt or summarily. A.D. 1918.

9. Subject to the provisions of this Order and in addition to the other lands which the Company are by this Order authorised to acquire the Company may enter upon take use and appropriate for the purpose of extending their station and storage accommodation and goods and marshalling yards and for providing additional siding and other accommodation and for other purposes connected with their undertaking all or any of the lands hereinafter described or referred to delineated on the deposited plans and described in the deposited books of reference relating thereto (that is to say):—

Power to
Company to
acquire lands
for general
purposes.

In the county of Ayr—

- (1) Certain lands in the parish of Stevenston and partly in the burgh of Saltcoats (including rights in the foreshore between high and low water mark of ordinary spring tides adjacent to the said lands) situated on the south side of and adjoining the Company's Ardrossan Railway immediately to the west of the Stevenston Burn and between the widening hereinbefore described and the foreshore;
- (2) Certain lands in the parish of Kilwinning situated on the east side of and adjoining the Company's main line of railway between Dalry Station and Kilwinning Station;
- (3) Certain lands in the parishes of Kilwinning Stevenston and Irvine situated on the east and west sides of and adjoining the Company's main line of railway between Kilwinning Station and Bogside Station;
- (4) Certain lands in the parish of Irvine and in the parish of Dundonald in the royal burgh of Irvine situated on both sides of and adjoining the Company's main line of railway between Bogside Station and Gailes Station;
- (5) Certain lands in the parish of Dundonald situate on the east side of and adjoining the Company's main line of railway between Troon Goods Station and Monkton Station;
- (6) Certain lands in the parish of Monkton and Prestwick and partly in the burgh of Prestwick situated on

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the east side of and adjoining the Company's main line of railway and the Company's Annbank Branch between Monkton Station and Prestwick Station ;

- (7) Certain lands in the parish of Monkton and Prestwick and in the burgh of Prestwick situated on the east side of and adjoining the Company's main line of railway between Prestwick Station and Newton-on-Ayr Station ;
- (8) Certain lands in the parish of Ayr situated on the north side of and adjoining the Company's Annbank Branch at and near Mossblown Junction ;
- (9) Certain lands in the parish of Coylton situated on the south side of and adjoining the Company's Holehouse Branch at Rankinston Station :

In the county of Dumfries—

- (10) Certain lands in the parish of Dornock situated on the south side of and adjoining the Company's main line of railway at Dornock Station ;
- (11) Certain lands in the parish of Gretna situated on both sides of and adjoining the Company's main line of railway at Gretna Green Station.

Company
may hold
certain lands
already
acquired.

10. The Company may hold and may use and appropriate for the general purposes of their undertaking the following lands which have been already acquired by them (that is to say) :—

In the county of Lanark—

- (1) Certain lands in the parish of Glasgow in the royal burgh of Glasgow situated on the west side of High Street and at the junction of that street with College Street and Ingram Street Glasgow ;
- (2) Certain lands in the parish of Glasgow in the royal burgh of Glasgow situated on the west side of High Street and between Stirling Street and Ingram Street Glasgow ;
- (3) Certain lands in the parish of Glasgow in the royal burgh of Glasgow situated on the east side of Spoutmouth and on the south side of Graeme Street and at the junction of Spoutmouth with Graeme Street Glasgow :

In the county of Ayr—

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- (4) Certain lands in the parish of Stevenston situated on the north and south sides of and adjoining the Company's Ardrossan Railway at Stevenston Station ;
- (5) Certain lands in the parish of Ayr in the royal burgh of Ayr situated on the east side of and adjoining the Company's main line of railway north of and near to Newton-on-Ayr Station ;
- (6) Certain lands in the parish of Ayr in the royal burgh of Ayr situated on the north side of Darlington Road and on the east side of and adjoining the Company's Goods Station at Ayr ;
- (7) Certain lands in the parish of Ayr in the royal burgh of Ayr situated on the east side of Green Street Lane and on the west side of and adjoining the Company's Goods Station at Ayr ;
- (8) Certain lands in the parish of New Cumnock situated on the north and south sides of and adjoining the Company's main line of railway at Bank Junction near New Cumnock Station ;
- (9) Certain lands partly in the parish of Kilwinning and partly in the burgh of Kilwinning situated on the west side of and adjoining the Company's main line of railway between Kilwinning Station and Bogside Station ;
- (10) Certain lands in the parish of Dundonald in the royal burgh of Irvine situated on the east side of and adjoining the Company's main line of railway north of and near Irvine Station ;
- (11) Certain lands in the parish of Dundonald partly in the royal burgh of Irvine partly in the burgh of Troon and in the parish of Monkton and Prestwick situated on the east and west sides of and adjoining the Company's main line of railway between Irvine Station and Monkton Station ;
- (12) Certain lands partly in the parish of Monkton and Prestwick in the burgh of Prestwick and partly in the parish of Ayr in the royal burgh of Ayr

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situated on the east side of and adjoining the Company's main line of railway between Prestwick Station and Woodfield Road Newton-on-Ayr;

- (13) Certain lands in the parish of New Cumnock situated on the west side of and adjoining the Lanemark lines of the Company's railway:

In the county of Dumfries—

- (14) Certain lands in the parish of Gretna situated on the south side of and adjoining the Company's main line of railway at Rigg Station:

In the county of Renfrew—

- (15) Certain lands in the parish of Paisley situated on the north side of and adjoining the Company's Paisley and Renfrew Railway at or near Abercorn Station:

In the county of Cumberland—

- (16) Certain lands in the parish of St. Cuthbert in the city of Carlisle situated on the south side of and adjoining the Company's engine sheds at Currock Carlisle:

And the expenditure of money by the Company in or about the purchase of the said lands is hereby sanctioned and confirmed For the purposes of section 3 of the Housing of the Working Classes Act 1903 as applied to Scotland by the Housing Town Planning &c. Act 1909 such lands shall be deemed to have been acquired under the powers of this section.

As to private rights of way over lands taken compulsorily.

11. All private rights of way over any lands which shall under the powers of this Order be acquired compulsorily shall as from the date of such acquisition be extinguished Provided that the Company shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Period for compulsory purchase of lands.

12. The powers of the Company for the compulsory purchase of lands for the purposes of this Order shall cease after the expiration of three years from the termination of the present war.

13. Persons empowered by the Lands Clauses Acts to sell and convey or discharge lands may if they think fit subject to the provisions of those Acts and of this Order grant to the Company any servitude right or privilege (not being a servitude right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Order in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges or feu duties so far as the same are applicable in this behalf shall extend and apply to such grants and to such servitudes rights and privileges as aforesaid respectively.

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 Powers to
 owners to
 grant servi-
 tudes.

14. And whereas in the construction of the works by this Order authorised or otherwise in the exercise by the Company of the powers of this Order it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Company and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect:—

Owners may
 be required
 to sell parts
 only of cer-
 tain proper-
 ties.

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described in the schedule to this Order and whereof a portion only is required for the purposes of the Company or each or any of them are hereinafter included in the term "the owner" and the said properties are hereinafter referred to as "the scheduled properties":
- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Company that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Company such portion only without the Company being obliged or compellable to purchase the whole the Company paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise:
- (3) If within such twenty-one days the owner shall by notice in writing to the Company allege that such

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portion cannot be so severed the jury arbiters or other authority to whom the question of disputed compensation shall be submitted (hereinafter referred to as "the tribunal") shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Company have compulsory powers of purchase) can be so severed:

- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Company the portion which the tribunal shall have determined to be so severable without the Company being obliged or compellable to purchase the whole the Company paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal:
- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the determination of any matters under this section shall be borne and paid by the owner:
- (6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Company may withdraw their notice to treat and thereupon they shall pay to the owner all costs

charges and expenses reasonably and properly incurred A.D. 1918.
by him in consequence of such notice :

- (7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Company in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation (Scotland) Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 90 of the Lands Clauses Consolidation (Scotland) Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

15. In all cases of disputed compensation arising under this Order in respect of land to be taken compulsorily or otherwise by the Company which fall to be determined under the provisions of the Lands Clauses Acts it shall unless the Company and the other party or parties to the dispute concur in the appointment of a single arbiter in terms of such Acts be in the power of the Company or such other party or parties to apply to the Secretary for Scotland to appoint a single arbiter to determine the compensation to be paid and it shall not be competent thereafter to have the same determined by arbiters oversman sheriff or jury acting under the said Acts The said arbiter upon appointment shall be deemed to be a sole arbiter within the meaning of the Lands Clauses Acts and the provisions of those Acts with regard to arbitration shall apply accordingly and the arbiter shall notwithstanding anything contained in the said Acts determine the amount of expenses in the arbitration and such determination shall be final The remuneration of the

Single
arbiter.

A.D. 1918. — said arbiter shall failing agreement be fixed by the Secretary for Scotland.

Lands for extraordinary purposes.

16. The quantity of land to be acquired by agreement by the Company for the extraordinary purposes mentioned in the Railways Clauses Consolidation (Scotland) Act 1845 shall not exceed fifty acres and such land shall be in addition to the lands which the Company are authorised by this Order to take compulsorily but nothing in that Act or in this Order shall exempt the Company from any interdict action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon any land so acquired by agreement.

For protection of Lanarkshire and Ayrshire and Caledonian Railway Companies.

17. The following provisions for the protection of the Lanarkshire and Ayrshire Railway Company and the Caledonian Railway Company (in this section referred to as "the companies") shall unless otherwise agreed between the companies and the Company apply and take effect (that is to say):—

(1) Notwithstanding anything contained in subsection (3) of the section of this Order of which the marginal note is "Power to Company to acquire lands for general purposes" the Company shall not enter upon take use or interfere with either temporarily or permanently any lands property or works of the Lanarkshire and Ayrshire Railway Company unless with the previous consent in writing of the said Lanarkshire and Ayrshire Railway Company but they shall purchase and take such lands and servitudes in or over any lands property or works of the Lanarkshire and Ayrshire Railway Company as shall be necessary for the purpose of constructing and maintaining any widening of their main line between Glasgow and Ayr in accordance with the provisions of this section :

(2) If and when the Company pursuant to any powers they now possess or may hereafter obtain proceed to alter or widen their railway at the point where the Lanarkshire and Ayrshire Railway passes under the same immediately to the south of Kilwinning Station the Company shall at their own expense construct and maintain a bridge of such dimensions as the Lanarkshire and Ayrshire Railway Company may reasonably

require for the purpose of carrying any widening of the Company's railway over the existing railway of the Lanarkshire and Ayrshire Railway Company and over any land required for the widening thereof in such a manner as will enable the Lanarkshire and Ayrshire Railway Company to widen their railway either by constructing a double line of rails on the east side of their existing railway or by constructing a single line on each side of their existing railway as shall be determined by the Lanarkshire and Ayrshire Railway Company upon receiving an intimation from the Company that they are about to proceed with the widening of their line : A.D. 1918.
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- (3) The Company consent to the Lanarkshire and Ayrshire Railway Company at any future time widening their existing railway in either of the methods specified in the immediately preceding subsection and upon the Lanarkshire and Ayrshire Railway Company completing the said widening the Company shall pay to the Lanarkshire and Ayrshire Railway Company a sum equal to one-half of the cost of the bridge required for carrying the said widening under the Company's present railway estimated on the basis of the said widening being carried out by the construction of a double line on the east side of the existing railway :
- (4) Before commencing any works or operations affecting any lines of railway or other works or land or in over across or affecting any works or other property belonging to or used or occupied or maintainable or repairable by the companies the Company shall submit to the companies plans sections working drawings and specifications thereof showing the manner in which such works or operations are to be carried out as well as the design material and mode of execution thereof for approval of the companies which approval shall be deemed to have been given unless the companies signify their disapproval within twenty-one days after submission of the said plans sections working drawings and specifications :

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- (5) All the said works and operations shall except as hereinafter provided be constructed carried on and completed by the Company in strict conformity with the plans sections working drawings and specifications so approved at the sole risk and cost of the Company and at the sight and to the reasonable satisfaction of the companies and all such works shall except as hereinafter provided be maintained repaired or renewed by the Company in all time coming at their sole risk and cost and at the sight and to the satisfaction of the companies :
- (6) The Company shall not without the previous consent in writing of the companies enter upon or alter or interfere with any line of railway or other works or land or other property belonging to or used or occupied by the companies or other work belonging to or maintainable or repairable by the companies further or otherwise than may be necessary for constructing and maintaining the said widening of their main line of railway between Glasgow and Ayr and they shall not save as aforesaid enter upon or alter or interfere with any of the said works or property of the companies :
- (7) The Company shall give twenty-eight days' previous notice in writing to the companies of their intention to commence the construction of any works affecting the property or works of the companies and such works shall be completed with all reasonable despatch :
- (8) The companies may in their discretion from time to time erect maintain and alter such signal cabins signals and conveniences as may become requisite in consequence of the works or operations of the Company and may appoint and remove such signalmen watchmen and other persons as may in their judgment be necessary for working the same and for the prevention of danger to detention of or interference with their traffic at or near the works of the Company and the expense of erecting altering maintaining and working such signal cabins signals and conveniences shall be repaid by the Company to the companies :

- (9) Should it be necessary in the opinion of the companies in consequence of the construction of any of the works of the Company for the companies permanently or temporarily to alter reconstruct or to remove any signal cabins signalling apparatus telegraph posts or wires or any works or other conveniences or any of them on or connected with their said railways at or near to the works of the companies the Company shall bear and on demand pay to the companies the expense of and connected with such alterations reconstruction or removal and of restoring the same to their former position or placing them in a different position or of substituting other works or conveniences therefor : A.D. 1918.
- (10) The Company shall pay to and reimburse the companies in all reasonable costs charges and expenses if any which they may incur in connexion with the construction of the works of the Company or the subsequent maintenance use alteration replacing or repair thereof including (without prejudice to the said generality) any expenses which the Company may reasonably incur in connexion with the employment of inspectors signalmen watchmen and others and for the superintendence of the works during construction and for all extra precautions for the safety and working of their traffic or protection of their property on account of the execution maintenance use alteration replacing or repair of the said works :
- (11) All the works and operations of the Company including the maintenance alteration replacing or repair of such works as aforesaid shall in so far as the same affect the railways land or other works or property of the companies be carried out so as not to injure alter or interfere with or endanger the structure or stability of the same or the electric telegraphic telephonic or signalling apparatus or other works belonging to or maintainable by the companies and should any danger injury interruption impediment or interference to or with the passage or conduct of traffic on any such railway be caused by or be in any way owing

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to the works or operations of the Company or the failure of or defect in any of the said works or operations the Company shall free of all expense to the companies execute and do all such works as may be necessary to restore or remove or prevent such injury danger interruption or impediment as the case may be or the companies in their option and for any of these purposes may enter upon the works or property of the Company and execute and do all such works and things as may be necessary to restore or remove or prevent such injury danger interruption or impediment and the Company shall on demand repay to the companies all reasonable costs and expenses incurred by them in connexion therewith Provided further that the Company shall pay all costs and expenses and shall make reasonable compensation to the companies for all loss or damage caused by such works and operations interruption impediment or interference to or with the aforesaid railways lands works or other property owned occupied maintained or repaired by the companies :

- (12) Nothing in this Order contained or which may be done in pursuance thereof shall prevent the companies in virtue of any powers which they now possess or which they may hereafter obtain from maintaining repairing and whenever in their discretion thought necessary renewing deviating widening enlarging altering or reconstructing their railway or other works in connection therewith and in particular widening their line where the same is crossed by the Company's bridge without interference on the part of the Company and without incurring any liability to the Company or to any person for any loss injury damage or expense which may arise from such maintenance repair renewal deviation widening enlarging alteration or reconstruction Provided that in the event of the companies exercising any such powers they shall do so in such a manner as to cause as little damage and interference as practicable to and with the works of the Company and shall give (except in cases of emergency in which cases notice shall be given as

soon as possible after the work has been commenced) A.D. 1918.
fourteen days' previous notice in writing to the
Company before commencing any such operations as
may affect any of the said works of the Company
Provided that any extra expense which the companies
may incur in such maintenance repair renewal devia-
tion widening enlarging alteration or reconstruction
by reason of the existence of any of the said works
shall be paid by the Company :

- (13) Any question or difference between the Company and
the companies arising under this section shall be
determined by an arbiter to be agreed upon between
the Company and the companies or failing agreement
to be nominated by the Board of Trade on the
application of either party.

18. For the protection of the provost magistrates and For protec-
councillors of the burgh of Saltcoats (in this section referred tion of town
to as "the town council") the following provisions shall unless council of
otherwise agreed between the Company and the town council Saltcoats.
apply and have effect (that is to say) :—

- (1) The town council shall convey to the Company free of
price and under reservation of the metals and minerals
and subject to the proportionate part effeiring thereto
of the land tax heritors assessments stipend mill mul-
tures and feu duty the land delineated and coloured
red on the plan thereof dated the eleventh day of April
nineteen hundred and eighteen and signed by David
Murray LL.D. writer Glasgow on behalf of the Com-
pany and by James Campbell town clerk Saltcoats
on behalf of the town council as relative to this
section The Company's formal entry to the said land
shall be at the expiry of three years from the termi-
nation of the present war but the Company shall
notwithstanding the said date of entry be entitled as
from the date of the commencement of this Order
to enter on the said land for the purpose of executing
such of the works hereinafter referred to as they
may find necessary :
- (2) The Company shall reconstruct the present pitched
embankment extending from the northern termina-
tion of Sea View Road in the burgh of Saltcoats to

A.D. 1918.

a point five hundred and sixty yards or thereby eastwards therefrom by erecting a sea wall on the sea side of the existing railway and forming behind the said sea wall a road and footwalk which together shall be not less than thirty feet in width from the existing southern boundary of the railway or if the railway shall be widened under the provisions of subsection (4) hereof from the southern boundary of the railway as so widened The said footwalk shall be on the sea side of the said road and shall be ten feet wide :

- (3) The Company shall provide two approach-accesses to the beach from the said road to be formed under subsection (2) hereof one at the west end and the other at the east end of the said sea wall at points to be agreed upon between the Company and the town council The said accesses shall be sloping footways with an inclination of one in five and shall be within the line of the face of the said sea wall The ramps of the said accesses shall run eastwards The said sea wall road footwalk and accesses shall be maintained by the Company except the road formation of the said road and footwalk and accesses all of which shall be maintained by the town council :
- (4) In the event of the Company desiring to widen their railway upon the south side thereof within the said length of five hundred and sixty yards or thereby they shall be entitled to do so to any extent not exceeding twenty-five feet from the existing southern boundary of the railway and to erect the said sea wall on a line southwards which line shall not at any part be more than fifty-five feet from the said existing southern boundary of the railway and to form the road and footwalk as aforesaid behind the same Provided always that the town council shall convey to the Company free of price and on the same terms and conditions as the land to be conveyed under subsection (1) hereof any additional land required for the purposes of this subsection :

(5) The Company shall form an inclined footwalk of at least ten feet in width from Nineyards Street immediately on the south side of the railway to the road to be constructed by them under subsection (2) hereof. The said inclined footwalk shall be maintained by the Company except the road formation thereof which shall be maintained by the town council. The Company shall erect and maintain on the south side of the said inclined footwalk a wall seven feet high above the level of the surface thereof. The Company shall also continue the boundary wall of the Mission Coast Home on the west side of Sea View Road to meet the aforesaid wall. The land belonging to the Company to the south and west of the said wall shall be conveyed by the Company to the town council free of price but subject to the proportion (if any) of feu duty tack duty casualties and other burdens effeiring to the land to be conveyed to the town council. The remainder of the land belonging to the Company lying eastwards of the said last-mentioned boundary wall and to the south of a line in continuation of the said wall seven feet high shall be added to the road to be formed under subsection (2) hereof. The town council shall acquire and convey to the Company the land necessary for the formation of the said inclined footwalk in so far as now the property of the trustees of the Mission Coast Home: A.D. 1918.

(6) The Company shall reconstruct at their own expense the lavatory arrangements of the Mission Coast Home in so far as interfered with by the works referred to in subsection (5) hereof to the satisfaction of the said trustees on land to be provided by the town council or the Company:

(7) From and after the opening for public use of the inclined footwalk provided for under subsection (5) hereof all the level crossings over the Company's railway between Nineyards Street Saltcoats and the Stevenston Burn in the parish of Stevenston including M'Lachlan's Lane Level Crossing and the two railway crossings referred to in article seven of the minute

A.D. 1918.

of agreement between the Ardrossan Railway Company and the Stevenston Coal Company and Patrick Warner and Robert Cuninghame dated seventh February eighteen hundred and forty shall be closed for all descriptions of traffic and all rights of way or other rights or servitudes over the same shall be extinguished Any right of the town council to lay a railway to Saltcoats Harbour upon the seaward side of the Company's railway is hereby extinguished:

- (8) The Company shall instead of erecting a sea wall on their extended boundary erect a sea wall from the termination of the sea wall to be constructed under subsection (2) hereof to a point four hundred yards eastwards thereof on the line shown on the plan referred to in subsection (1) hereof and the said sea wall shall be maintained by the Company and the town council equally The town council shall form and maintain a road immediately on the north side of the said sea wall and shall make up and maintain the ground between the said road and the southern boundary of the railway as extended at a level not lower than that of the said road:
- (9) The Company shall as and when necessary for the protection of their railway and to such extent as they may determine continue the said sea wall referred to in subsection (8) hereof eastwards on a line to be mutually arranged between the Company and the town council The continuation of the said sea wall shall be maintained by the Company and the town council equally The town council shall form and maintain a road and shall make up and maintain the land lying between the same and the southern boundary of the railway in the same way as provided for in subsection (8) hereof:
- (10) In erecting the aforesaid sea walls and forming the said beach accesses the Company shall be entitled to enter upon the town council's property on the sea side of the said sea walls to such extent as may be necessary The Company shall likewise be entitled should they find it necessary to do so to erect works for the protection of the said sea walls and beach

accesses on the town council's property to an extent not exceeding twenty-five feet measured seawards from the said sea walls: A.D. 1918.

- (11) On the expiry of five years from the termination of the present war the Company shall pay to the town council the sum of two thousand two hundred and fifty pounds sterling as full compensation in respect of the crossings closed under this section and the town council shall be entitled at any time to erect a bridge of such width and dimensions as the town council may determine across the Company's railway as the same may be widened within the limits of the land to be acquired under this section. The said bridge shall be erected at any point between the occupation level crossing known as the Magnesia Houses Crossing and the occupation level crossing lying immediately to the east thereof and the height of the said bridge over the Company's railways shall not be less than fifteen feet above the top of the rails:
- (12) The town council shall be entitled to maintain the existing footbridge over the Company's railway near Seabank Street in the burgh of Saltcoats and to widen the same at their own expense as and when necessary and also to renew and reconstruct the said footbridge from time to time. Provided always that the said works shall be approved by and executed and carried out to the satisfaction of the Company's engineer for the time being:
- (13) The Company shall be entitled to take from the shore ex adverso of the sea walls to be constructed under this section such stones sand gravel and other material as they may find necessary for the construction of the said sea walls road footwalk beach accesses and inclined footwalk:
- (14) The town council shall be entitled to take from the shore ex adverso of the sea wall and continuation thereof to be constructed under subsections (8) and (9) hereof such stones sand gravel and other material as they may find necessary for the construction of the said roads to be formed by them under the said

A.D. 1918.

subsections but the town council shall not be entitled to take from the said part of the said shore sand and/or gravel for the filling up and levelling of the land referred to in the said subsections (8) and (9):

- (15) Except as hereinbefore mentioned the removal of all sand and gravel from the shore ex adverso of the said sea walls shall be prohibited by the town council:
- (16) The Company shall incorporate in the road and footwalk behind the sea wall to be constructed by them under subsections (2) or (4) hereof so much of the present pitched embankment and toe thereof as can be utilised in embanking for the said road and footwalk. The town council may on the completion of the said sea wall road and footwalk by the Company remove the remainder if any of the said pitched embankment and the toe thereof:
- (17) All conveyances of land by the town council to the Company to be granted under this section and of all conveyances of land occasioned by the provision of the inclined footwalk under subsection (5) hereof shall contain all usual and necessary clauses and the cost of all such conveyances shall be borne by the Company:
- (18) The works to be executed by the Company or by the town council under the provisions of subsections (2) (3) (4) (5) (6) (8) and (16) hereof shall be completed within a period of five years from the termination of the present war:
- (19) Plans sections and drawings of the sea wall to be constructed under this section and of the inclined footwalk from Nineyards Street and of any bridge which may be constructed by the town council under the provisions of subsection (11) hereof and of any protective works which may be constructed by the Company under subsection (10) hereof and the specification of the formation of the road footwalk beach accesses and inclined footwalk to be formed by the Company and maintained in whole or in part

by the town council shall except the plans sections and drawings of the sea wall referred to in subsection (2) hereof which shall be submitted only to the town council for inspection be approved by the Company and the town council and any dispute or difference regarding the same shall be referred to an arbiter to be appointed on the application of either party by the Board of Trade and any difference between the Company and the town council relating to the construction and carrying out of the works to be formed under this section shall also be referred to such arbiter :

A.D. 1918.

- (20) Any disputes or differences which may arise between the Company and the town council (other than those provided for in subsection (19) hereof) regarding the true intent and meaning of this section shall be determined by the Dean of Faculty of Advocates for the time being.

19.—(1) The provisions contained in section 17 (For protection of the commissioners and local authority of the burgh of Troon) of the Glasgow and South Western Railway Act 1900 shall so far as applicable extend and apply in the case of any existing water mains or pipes belonging to the provost magistrates and councillors of the burgh of Troon situate on in or under the lands specified in subsection (11) of the section of this Order whereof the marginal note is “Company may hold certain lands already acquired.”

For protection of burgh of Troon.

(2) The Company shall if and when they widen their main line of railway at the Bogs or Willockstone Level Crossing situate to the south of the old Troon Goods Station in the parish of Dundonald in the county of Ayr construct and thereafter maintain a footbridge and on their so doing all rights of way or servitudes (if any) in over or across the said level crossing shall be extinguished.

20. For the protection of the provost magistrates and councillors of the burgh of Prestwick (in this section referred to as “the town council”) the following provision shall unless otherwise agreed between the Company and the town council apply and have effect (that is to say):—

For protection of burgh of Prestwick.

The Company shall not use the lands including rights of way to be acquired by them under this Order within the

A.D. 1918.

said burgh for widening their railway or interfere with the roads known as Seagate Station Road Bridge Street Grangemuir Road and Maryboro Road or widen the bridges carrying their railway across or under the same or interfere with the burgh sewers until they have obtained further parliamentary powers to do so and the town council shall be entitled to oppose the application for such parliamentary powers.

For protec-
tion of Ayr
county coun-
cil.

21. For the protection of the county council of the county of Ayr (in this section referred to as "the council") the following provision shall unless otherwise agreed between the Company and the council apply and have effect (that is to say):—

Notwithstanding anything contained in this Order or shown on the deposited plans the Company shall not acquire any part of the lands in the parish of Stevenston numbered 7 and 14 on the deposited plans shown by red colour on the plan dated the eleventh day of April nineteen hundred and eighteen and signed by David Murray LL.D. writer Glasgow on behalf of the Company and by James Edward Shaw county clerk Ayr on behalf of the council as relative to this section.

For pro-
tection of
Ardeer
Estate.

22. For the protection of Henry Gardiner Patrick Joseph Robert McLagan Wedderburn and Graham Gilbert Watson the trustees of the late Patrick Warner or other the owner or owners for the time being of the Ardeer Estate (all of whom are in this section referred to as and included in the expression "the owner") the following provision shall unless otherwise agreed between the Company and the owner apply and have effect (that is to say):—

Notwithstanding anything contained in this Order or shown on the deposited plans the Company shall not acquire any part of the lands in the parish of Stevenston numbered 7 and 14 on the deposited plans shown by red colour on the plan dated the eleventh day of April nineteen hundred and eighteen and signed by David Murray LL.D. writer Glasgow on behalf of the Company and by Carment Wedderburn and Watson W.S. Edinburgh on behalf of the owner as relative to this section.

For protec-
tion of Ayr-
shire Dock-

23. For the protection of the Ayrshire Dockyard Company Limited whose registered office is situated at Irvine and of John

Napier engineer residing at nine Woodside Place Glasgow A.D. 1918.
 (in this section referred to as "the dockyard company") the yard Com-
 following provision shall unless otherwise agreed between the pany Limi-
 Company and the dockyard company apply and have effect ted and
 (that is to say):— John Napier.

Notwithstanding anything in this Order contained the Com-
 pany shall only acquire from the dockyard company
 under subsection (4) of the section of this Order whereof
 the marginal note is "Power to Company to acquire
 lands for general purposes" an area of land extending to
 three hundred and ninety decimal parts of an acre
 imperial standard measure or thereby being part of the
 lands marked with the numbers 42 and 43 on the said
 deposited plans as shown in red on the plan dated the
 eleventh day of April nineteen hundred and eighteen and
 signed by David Murray LL.D. writer Glasgow on behalf
 of the Company and by Harry Lumsden writer Glasgow on
 behalf of the dockyard company as relative to this section
 which shall be exclusively used for the widening of the
 Company's main line of railway.

24. The period limited by the Order of 1911 for completing Extension
 the railways by that Order authorised is hereby extended and of time for
 shall continue in force for a period of five years from the construction
 termination of the present war and sections 8 and 9 of the of railways
 Order of 1911 shall be read and construed accordingly and the authorised
 Company may during such extended period exercise the powers by Order of
 granted to them by the Order of 1911 with respect to the said 1911.
 railways.

If the said railways be not completed within the said period
 then on the expiration of that period the powers by the Order
 of 1911 granted to the Company for making and completing
 the said railways or otherwise in relation thereto shall cease
 except as to so much thereof as shall be then completed.

25.—(1) The powers granted by the Glasgow and Renfrew Extension
 District Railway Act 1897 as now extended by the Caledonian of time for
 Railway Order 1915 for the compulsory purchase of the several purchase of
 lands referred to in the Second Schedule to the Glasgow and land for and
 South Western Railway Order 1906 are hereby further extended for comple-
 and shall continue in force and may subject to the provisions tion of Glas-
 of section 24 (For protection of trustees of Clyde Navigation) gow and
 Renfrew
 District
 Railway.

A.D. 1918. — of the Order of 1911 be exercised by the Company and the Caledonian Railway Company for the further period of three years from the termination of the present war and on the expiration of that period those powers shall cease but nothing in this Order shall relieve the said companies from the obligation or restrictions imposed by section 30 (Restrictions on displacing persons of the labouring class) of the said Act of 1897.

(2) The period limited by the Glasgow and Renfrew District Railway Act 1897 as now extended by the Caledonian Railway Order 1915 for the completion of Railway No. 5 authorised by the said Act of 1897 is hereby further extended for a period of five years from the termination of the present war and sections 12 and 13 of the Glasgow and South Western Railway (Darvel and Lanarkshire Railway Transfer) Order 1904 shall so far as the same relate to or affect the said railway be read and construed accordingly. If the said railway is not completed within the said period of five years then on the expiration of that period the powers for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

(3) Nothing in this section shall prejudice alter or affect (a) the provisions of section 19 of the Caledonian Railway Order 1913 relating to the formation of the road or street referred to in that section or (b) the provisions of the Clyde Navigation Order 1914 relating to Railway No. 6 as therein defined and the railway and bridge and other works thereby authorised to be constructed by the trustees of the Clyde Navigation.

Power to
 Company to
 retain lease
 &c. super-
 fluous lands.

26. And whereas lands have from time to time been purchased or acquired by the Company adjoining or near to railways or stations belonging to the Company which may not be immediately required for the purposes of their undertaking and it is expedient that further powers should be conferred upon the Company with respect to such lands. Therefore notwithstanding anything contained in the Lands Clauses Consolidation (Scotland) Act 1845 or in any Act or Order relating to the Company with which that Act is incorporated the Company shall not be required to sell or dispose of any such lands which may not be required for such purposes but may retain hold or use or may lease or otherwise dispose of the same on such terms as the Company may think fit.

27. And whereas lands have from time to time been purchased or acquired by the Company and the Caledonian Company as joint owners of the Glasgow and Paisley Joint Railway and the Glasgow and Kilmarnock Joint Railway (in this section called "the two companies") adjoining or near railways of or stations on such railways belonging to the two companies or either of them which may not be immediately required for the purposes of such joint railways respectively and it is expedient that further powers should be conferred upon the two companies with respect to such lands Therefore notwithstanding anything contained in the Lands Clauses Consolidation (Scotland) Act 1845 or in any Act or Order relating to the two companies or either of them with which that Act is incorporated the two companies or either of them shall not be required to sell or dispose of any such lands which may not be required for such purposes but may retain hold or use or may lease or otherwise dispose of the same on such terms as the two companies or either of them may think fit.

A.D. 1918.
 Power to
 Company
 and Cale-
 donian Com-
 pany to
 retain lease
 &c. super-
 fluous lands.

28. And whereas lands have from time to time been purchased or acquired by the joint committee adjoining or near to railways or stations on such railways belonging to the joint committee which may not be immediately required for the purposes of the Portpatrick and Wigtownshire Railways and it is expedient that further powers should be conferred upon the joint committee with respect to such lands Therefore notwithstanding anything contained in the Lands Clauses Consolidation (Scotland) Act 1845 or in any Act or Order relating to the joint committee or the Company or the Midland Railway Company or the Caledonian Company or the London and North Western Railway Company with which that Act is incorporated the joint committee shall not be required to sell or dispose of any such lands which may not be required for such purposes but may retain hold or use or may lease or otherwise dispose of the same on such terms as the joint committee may think fit.

Power to
 Portpatrick
 and Wig-
 townshire
 Joint Com-
 mittee to
 retain lease
 &c. super-
 fluous lands.

29.—(1) The Company may for any of the purposes of this Order and for other purposes of their undertaking in respect of which the Company have already expended or will require to expend money and for which no capital has been authorised to be raised or for which the capital already authorised has proved or will prove insufficient and for the general purposes of their

Power to
 Company
 to raise
 additional
 capital.

A.D. 1918. — undertaking raise by the creation and issue of new shares or stock such additional capital as they think fit not exceeding in the whole the sum of six hundred thousand pounds and they may create and issue such new shares or stock either wholly or partially as ordinary or wholly or partially as preference shares or stock as they may think fit.

(2) Preference shares or stock issued by the Company under this Order shall be entitled to the preferential dividend or interest assigned thereto only out of the profits of each year ending on the thirty-first day of December.

(3) Preference stock created under the powers of this section shall if so declared by the resolution creating the same form part of and rank *pari passu* with any preference stock created or to be created under the powers of section 27 (Power to create preference stocks of one class) of the Glasgow and South Western Railway Act 1900.

Shares not
to be issued
until one-
fifth paid.

30. The Company shall not issue any share under the authority of this Order of less nominal value than ten pounds nor shall any share vest in the person accepting the same unless and until a sum not being less than one-fifth of the amount of such share shall have been paid in respect thereof.

Dividends on
new shares
or stock.

31. Every person who becomes entitled to new shares or stock shall in respect of the same be a holder of shares or stock in the Company and shall be entitled to a dividend with the other holders of shares or stock of the same class or description proportioned to the whole amount from time to time called up and paid on such new shares or to the whole amount of such stock as the case may be.

Votes in
respect of
new shares
or stock.

32. Each holder of new shares or stock in the capital by this Order authorised to be raised shall be entitled to the same number of votes in respect thereof which the possession of an equal nominal amount of the existing capital stock of the Company of the same class or description would have conferred upon him. Provided always that except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any new shares or stock to which a preferential dividend shall be assigned.

Power to
Company to
raise capital
by new

33. Subject to the provisions of any Act or Order already passed or confirmed by which the Company are authorised to raise capital by new shares or stock and to the provisions of

this Order the Company may if they think fit raise by the creation and issue of new shares or stock of one and the same class all or any part of the aggregate capital which they are by such other Act or Order and this Order respectively authorised to raise by the creation and issue of new shares or stock.

A.D. 1918.
 ———
 shares or
 stock of one
 class.

34. The Company may in respect of the additional capital of six hundred thousand pounds which they are by this Order authorised to raise borrow on mortgage of their undertaking any moneys not exceeding in the whole two hundred thousand pounds but no part thereof shall be borrowed until shares for so much of the said additional capital as is to be raised by means of shares is issued and accepted and one-half of such capital is paid up and the Company have proved to the sheriff who is to certify under the forty-second section of the Companies Clauses Consolidation (Scotland) Act 1845 before he so certifies that shares for the whole of such capital have been issued and accepted and that one-half of such capital has been paid up and that not less than one-fifth part of the amount of each separate share in such capital has been paid on account thereof before or at the time of the issue or acceptance thereof and until stock for one-half of so much of the said additional capital as is to be raised by means of stock is fully paid up and the Company have proved to such sheriff as aforesaid before he so certifies that such shares or stock as the case may be were issued and accepted bonâ fide and are held by the persons to whom the same were issued or their executors administrators successors or assigns and also so far as the said additional capital is raised by shares that such persons their executors administrators successors or assigns are legally liable for the same and upon production to such sheriff of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

Power to
 Company
 to borrow.

35. Every provision in any Act or Order passed before the present session of Parliament whereby the Company is authorised to raise by borrowing money for the purposes of their undertaking with respect to the appointment of a judicial factor for enforcing payment by the Company of arrears of principal money or principal money and interest shall be and the same is hereby repealed but without prejudice to any appointment which may have been made or to the continuance of any proceedings which

Repealing
 provisions of
 former Acts
 and Orders
 with respect
 to appoint-
 ment of a
 judicial
 factor.

A.D. 1918. — may have been commenced prior to the confirmation of this Order under any such provision.

For appoint-
ment of a
judicial
factor.

36. The mortgagees of the Company may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a judicial factor. In order to authorise the appointment of a judicial factor in respect of arrears of principal the amount owing to the mortgagees by whom the application for a judicial factor is made shall not be less than ten thousand pounds in the whole.

Former
mortgages
to have
priority.

37. All mortgages and bonds granted by the Company in pursuance of the powers of any Act of Parliament or Order before the commencement of this Order and subsisting at the commencement hereof shall during the continuance of such mortgages and bonds as regards the undertaking comprised in and assigned by such mortgages and bonds respectively and subject to the provisions of the Acts or Orders under which such mortgages and bonds were respectively granted have priority over any mortgages to be granted by virtue of this Order but nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created by the Company.

Power to
Company
to create
debenture
stock.

38. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock at any time after the commencement of this Order created and issued by the Company shall rank *pari passu* with the interest of all mortgages at any time after the commencement of this Order granted by the Company and shall have priority over all principal moneys secured by such mortgages.

Debenture
stock in
respect of
capitalised
value of feu
duties.

39. As from the commencement of this Order there shall be created by virtue of this Order and without any further or other authority debenture stock of the Company to the amount of one hundred and thirty-eight thousand one hundred and eighteen pounds being the capitalised value of the perpetual feu duties and ground annuals in consideration of which the Company have from time to time purchased lands and the Company may issue the said stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest on such debenture stock

shall rank *pari passu* with the interest of all mortgages at any time after the commencement of this Order granted by the Company and shall have priority over all principal moneys secured by such mortgages Provided that all moneys raised by the Company by the issue of debenture stock under this section shall be applied only to purposes to which capital is properly applicable. A.D. 1918.
—

40. All moneys raised by the Company under the provisions of this Order whether by shares stock debenture stock or borrowing shall be applied only to the purposes of this Order and to other purposes of their undertaking in respect of which the Company have already expended or will require to expend money and for which no capital has been authorised to be raised or for which the capital already authorised has proved or will prove insufficient and to the general purposes of the undertaking of the Company and to defray expenses incurred or to be incurred by them in the execution of works the acquisition of lands the improvement and provision of stations sidings and works the erection or rebuilding of workshops stores stables and other buildings required in connexion with the said undertaking and of dwelling-houses and other buildings for workmen and employees and the improvement and provision of working apparatus machinery plant and stock being in each case purposes to which capital is properly applicable. Application
of moneys by
Company.

41. The Company may apply to or towards the purposes of this Order to which capital is properly applicable any sums of money which they have already raised or are authorised to raise by any of their Acts or Orders and which are not required for the purposes to which they are by those Acts or Orders made specially applicable. Power to
Company to
apply autho-
rised capital
to purposes
of Order.

42. No interest or dividend shall be paid out of any share or loan capital which the Company are by this Order or any other Order or any Act authorised to raise to any shareholder on the amount of the calls made in respect of the shares held by him but nothing in this Order shall prevent the Company from paying to any shareholder such interest on money advanced by him beyond the amount of the calls actually made as is in conformity with the Companies Clauses Consolidation (Scotland) Act 1845. Interest not
to be paid
out of capital.

[Ch. xxxii.] *Glasgow and South Western* [8 & 9 GEO. 5.]
Railway Order Confirmation Act, 1918.

A.D. 1918. 43. Notwithstanding anything contained in this Order the
 Restriction on raising of capital. Company shall not under the powers of or for the purposes of this Order raise or borrow any money during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained.

Deposits for future Bills or Orders not to be paid out of capital. 44. The Company shall not out of any money by this Order authorised to be raised pay or deposit any sum which by any standing order of either House of Parliament or any general order made in pursuance of the Private Legislation Procedure (Scotland) Act 1899 now or hereafter in force may be required to be deposited in respect of any application to Parliament for the purpose of obtaining an Act or Order authorising the Company to construct any other railway or to execute any other work or undertaking.

Provision as to general Railway Acts. 45. Nothing herein contained shall exempt any company upon whom powers are conferred by this Order or their respective railways from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies passed before or after the commencement of this Order or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised to be taken by the said companies respectively.

Crown rights. 46. Nothing in this Order shall affect prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained shall authorise the Company to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land heritages subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or of the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give).

Working of minerals belonging to Crown. 47. Notwithstanding the provisions contained in the section of this Order of which the marginal note is "Crown rights" or in any public statute His Majesty and His lessees for their respective interests may work the minerals belonging to the

Crown under or adjacent to the lands and works of the Company authorised to be taken or constructed by this Order but in the event of any such right being at any time intended to be exercised the provisions of the Railways Clauses Consolidation (Scotland) Act 1845 relating to notice and compensation shall apply when the workings reach a point the distance of which from the nearest of such lands would not if measured horizontally exceed one half the depth of such workings below the surface level of such lands. A.D. 1918.

48. Nothing in this Order contained shall extend to authorise the Company to take enter upon use or interfere with any buildings land soil or water or any right in respect thereof vested in or exercised by or in the occupation or possession of the Principal Secretary of State for the War Department the Minister of Munitions or any other Government department or of any other person body or company for the time acting for or on behalf of the said Secretary of State for War the Minister of Munitions or any other Government department or to take away lessen prejudice or alter any of the rights privileges or powers vested in or exercised by the said Secretary of State for War the Minister of Munitions or any other Government department without the consent of the said Secretary of State or Minister of Munitions or the head of such other Government department as aforesaid signified in writing under his hand which consent the said Secretary of State for War the Minister of Munitions or the head of such other Government department as aforesaid is authorised to give subject to such special or other conditions as he shall see fit to impose on the Company. Rights of War Office and other Departments.

49. All costs charges and expenses of and incident to the preparing for obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the Company. Expenses of Order.

[Ch. xxxii.] *Glasgow and South Western* [8 & 9 GEO. 5.]
Railway Order Confirmation Act, 1918.

A.D. 1918. The SCHEDULE referred to in the foregoing Order.

DESCRIBING PROPERTIES OF WHICH PARTS ONLY ARE REQUIRED
TO BE TAKEN BY THE COMPANY.

Parish.	Burgh.	Number on deposited Plans.
Stevenston - - - -	Widening of Railway. Saltcoats - - - -	2 2.
Dundonald - - - -	Land between Bogside and Gables. Irvine - - - -	44 45 46 48 49 50.
Dundonald - - - -	Land between Troon Goods Station and —	Monkton. 54.
Monkton and Prestwick - -	Land between Monkton and Prestwick. —	60 61 62.
Monkton and Prestwick - -	Land between Monkton and Prestwick. Prestwick - - - -	71 72.
Monkton and Prestwick - -	Land between Prestwick and Newton-on-Ayr. Prestwick - - - -	73 74 76 79 80 81.

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